

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 687

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO PURCHASING; AMENDING CHAPTER 92, TITLE 67, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 67-9236, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING THE PURCHASE OF UNBIASED ARTIFICIAL INTELLIGENCE IN STATE GOVERNMENT, TO DEFINE TERMS, TO ESTABLISH REQUIREMENTS FOR THE PURCHASE, DEPLOYMENT, OR USE OF A LARGE LANGUAGE MODEL, TO ESTABLISH CONTRACT REQUIREMENTS, TO PROVIDE FOR COMPLIANCE REVIEW AND PROCEDURES, AND TO PROVIDE FOR CONSTRUCTION; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 92, Title 67, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 67-9236, Idaho Code, and to read as follows:

67-9236. UNBIASED ARTIFICIAL INTELLIGENCE IN STATE GOVERNMENT. (1) As used in this section:

(a) "Agency" means any department, office, division, board, commission, institution, or other entity of the executive branch of state government, including institutions of higher education.

(b) "Agency head" means the chief executive officer or governing authority of an agency.

(c) "Diversity, equity, and inclusion" or "DEI" means any trainings, programs, activities, or instruction that is derived from or that promotes the tenets or concepts of critical theory, including but not limited to the concepts of unconscious or implicit bias, microaggressions, internalized racism, cultural appropriation, structural equity, settler colonialism, group marginalization, systemic oppression, social justice, institutional or systemic racism, white fragility, racial privilege, disparate impact, intersectionality, sexual privilege, patriarchy, gender theory, queer theory, neopronouns, transgender ideology, misgendering, othering, deadnaming, heteronormativity, allyship, or any other related formulation of these tenets or concepts.

(d) "Ideological agenda" means the intentional alteration, suppression, prioritization, or framing of information or representation in an artificial intelligence system's outputs to promote a political, social, or policy outcome, including DEI concepts, when such alteration is not expressly requested by the user.

(e) "Large language model" means a generative artificial intelligence system trained on large datasets that is capable of producing natural language text, images, or other content in response to user prompts.

(2) An agency shall procure, deploy, or use a large language model only if the model is developed and implemented in accordance with the following principles:

1 (a) Truth-seeking: A large language model shall prioritize factual ac-
2 curacy, historical fidelity, scientific inquiry, and objectivity when
3 responding to prompts seeking information or analysis. Where reliable
4 information is incomplete, disputed, or unavailable, the model shall
5 acknowledge such uncertainty; and

6 (b) Ideological neutrality: A large language model shall function as
7 a neutral, nonpartisan tool and shall not intentionally manipulate out-
8 puts to advance or suppress an ideological agenda, including DEI con-
9 cepts. Ideological, normative, or policy-based responses may be gener-
10 ated only when expressly requested by the user or when clearly disclosed
11 and readily accessible to the user.

12 (3) (a) No agency shall procure, deploy, or use a large language model
13 that is designed, trained, fine-tuned, or configured to:

14 (i) Alter factual information or historical representation for
15 the purpose of achieving outcomes associated with DEI;
16 (ii) Suppress, refuse, or condition the generation of lawful con-
17 tent based on the race or sex of individuals or groups;
18 (iii) Embed DEI-based constraints, guardrails, or response poli-
19 cies that override accuracy or objectivity; or
20 (iv) Require users to adopt, affirm, or comply with DEI concepts
21 as a condition of receiving information.

22 (b) Nothing in this subsection shall prohibit a large language model
23 from accurately describing DEI concepts, history, or critiques in an
24 informational, academic, or analytical context when such information
25 is requested by the user.

26 (4) (a) Any contract entered into by an agency for the procurement or use
27 of a large language model shall require compliance with this paragraph.

28 (i) A contract shall require the vendor to provide the agency with
29 reasonable access, subject to confidentiality and nondisclosure
30 protections, to materials necessary to verify compliance with
31 this section, including but not limited to:

32 1. System prompts and content policies;
33 2. Model specifications and training directives;
34 3. Evaluation methodologies and testing results; and
35 4. Source code, configuration files, or other backend tech-
36 nical materials, if necessary to assess intentional ideo-
37 logical manipulation.

38 (ii) A contract shall provide that, upon a finding of material
39 noncompliance following notice and a reasonable opportunity to
40 cure, the agency may terminate the contract and require the vendor
41 to bear reasonable decommissioning or transition costs.

42 (b) Agencies may utilize state personnel or independent technical ex-
43 perts to conduct compliance reviews.

44 (5) Each agency shall adopt procedures to ensure compliance with this
45 section, including periodic review of large language model performance. In
46 evaluating compliance, agencies shall consider:

47 (a) Whether distortions or biases are systemic or intentional rather
48 than incidental errors;
49 (b) The intended use and operational context of the model; and
50 (c) The technical feasibility of corrective action.

1 (6) Nothing in this section shall be construed to:

2 (a) Regulate private speech or restrict the development or sale of ar-
3 tificial intelligence systems outside state government;

4 (b) Mandate ideological viewpoints or prohibit lawful academic in-
5 quiry; or

6 (c) Create a private right of action.

7 SECTION 2. An emergency existing therefor, which emergency is hereby
8 declared to exist, this act shall be in full force and effect on and after its
9 passage and approval.